

## 25STCV12649 25STCV12649

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Case Number: 25STCV12649 Hearing Date: August 4, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 4, 2026

Case Name: Travelers Indemnity Company of Connecticut v. Orkid Plaza LLC, et al.

Case No.: 25STCV12649

Matter: Motion for Summary Judgment

Moving Party: Defendant Orkid Plaza LLC

Responding Party: Plaintiff Travelers Indemnity Company of Connecticut

Notice: OK

Ruling: The Motion for Summary Judgment is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a subrogation action brought by Plaintiff Travelers Indemnity Company of Connecticut ("Travelers") as equitable subrogee of its insured, Sana Fabrics, Inc. ("Sana"), seeking recovery for property damages resulting from a fire on June 12,

2022. Sana occupied commercial real property at 720 S. San Pedro Street, Los Angeles. Defendant Orkid Plaza LLC ("Orkid") owned adjacent property located at 722 S. San Pedro Street, leased to co-Defendant BNB Wholesale and Distribution, Inc. ("BNB").

Travelers alleges that a combustible plywood and tarp structure ("Yard Building") constructed on Orkid's property was built without fire-resistive materials and was physically attached to the exterior wall of Sana's building. On June 12, 2022, a fire originating in an adjacent trash/debris pile in the rear alley spread to the Yard Building, rapidly causing full compartment involvement and forcing dense smoke through Sana's exterior wall, resulting in over \$1.2 million in soft goods contamination

Defendant Orkid Plaza LLC now seeks summary judgment.

The law of summary judgment provides courts "a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) In reviewing a motion for summary judgment or adjudication, courts employ a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) The moving party bears the initial burden of production to make a prima facie showing of the nonexistence of any triable issue, in which case the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue. (Code Civ. Proc. § 437c(p)(2).) To show a triable issue of material fact exists, the opposing party may not rely on the mere allegations or denials of the pleadings, but instead must set forth the specific facts showing that a triable issue exists as to that cause of action or a defense thereto. (Aguilar, at p. 849.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

Orkid's Motion relies entirely on unauthenticated or uncertified exhibits (Exhibits A–C). Unsworn, unauthenticated documents cannot sustain a moving party's initial burden on summary judgment (Garibay v. Hemmat (2008) 161 Cal.App.4th 95, 101). On this ground alone, Orkid fails to satisfy its initial burden of production.

Even assuming that Orkid met its initial burden, Travelers has presented substantial admissible evidence raising triable issues of material fact regarding duty, breach, and legal causation. A landowner owes a duty of reasonable care to maintain its property in a reasonably safe condition and to abate hazards (Civ. Code § 1714; Rowland v. Christian (1968) 69 Cal.2d 108). The Yasharpour Declaration creates a triable issue of fact as to whether Orkid had actual or constructive notice that its tenants were accumulating heavy combustible trash/debris in the alley adjacent to its property from 2020 through 2022. The Wood Declaration and supporting geospatial evidence create a triable issue that Orkid permitted an unpermitted, non-fire-resistive "Yard Building" constructed of OSB/plywood and tarps to remain on its property from at least July 2014 until the 2022 fire. Orkid's argument that the origin/ignition cause of the alley fire was "undetermined" is legally insufficient to eliminate liability. A landowner may be liable for the negligent spread of fire or smoke resulting from a maintained hazard on its premises, even if the initial ignition point was started by an unknown third party or undetermined source (see Vasquez v. Residential Investments, Inc. (2004) 118 Cal.App.4th 269).

Travelers' expert, Christopher Wood, P.E., provides uncontradicted expert opinion that: the alley debris fire alone would not have caused smoke to migrate into Sana's facility; the Yard Building added substantial fuel and accelerated the fire to flashover state; and the physical attachment of the non-fire-rated Yard Building directly to Sana's exterior wall trapped the buoyant smoke and mechanically forced horizontal migration into Sana's building, causing the underlying loss. These expert conclusions directly dispute Orkid's assertion that it did not contribute to the loss, establishing triable issues for the trier of fact (UMF Nos. 1–14).

For all these reasons, the Motion for Summary Judgment is denied. The objections are sustained.

Moving party to give notice.